

Court No. - 3

Case :- WRIT - C No. - 13572 of 2022

Petitioner :- K.R. Weaving Mills Pvt. Ltd.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard learned counsels for the parties.

This writ petition has been filed praying for the following relief:

"a) Issue a writ, of certiorari quashing the impugned bill-cum-disconnection notice dated 3.5.2022 issued by respondent no.3 as contained in Annexure P14.

ii. Issue a writ, order or direction in the nature of mandamus declaring all the electricity bills purportedly issued by the respondent 3 under Rate Schedule HV-2 as totally illegal and contrary to law and further direct the respondent 3 to prepare final bill in the light of the facts stated in the writ petition and to refund the amount, if any, found deposit in excess with the respondent 3, after adjusting the electricity dues admissible and payable by the petitioner in accordance with law and if any amount is still found payable by the petitioner to inform him by issuing a correct bill accordingly in accordance with law.

iii. issue a writ order or direction preferably in the nature of mandamus directing respondent 3 not to enforce bill-cum-disconnection notice against the petitioner in any manner including coercive process;

Sri Baleshwar Chaturvedi, learned counsel for the respondent No. 2 / Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent No. 3, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No. 3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of

the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 4.7.2022

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